

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MARCH 25, 2026
8:30 a.m.

2. CAROLINA L. CUMPA V. KELVIN MONTEZA

25FL0645

This matter is before the court on the Request for Order (RFO) filed by the Petitioner on January 22, 2026, to modify child support retroactive to the date of filing the RFO. The court, on its own motion, continued the matter from March 04, 2026, to allow the Petitioner additional time to submit a signed Income and Expense Declaration (I&E), and thereafter, allow the Respondent an opportunity to respond. The court ordered the Petitioner to file and serve the signed I&E on or before March 11, 2026; and the Respondent to file and serve his Responsive Declaration and I&E on or before March 20, 2026.

It appears that the court incorrectly determined that the Petitioner did not sign her I&E under the penalty of perjury. The court has reviewed and considered the I&E, which indicates that the Petitioner became unemployed on November 16, 2025.

On March 20, 2026, the Respondent filed his current I&E. The Respondent states he started a new job at Pyramid Investment LLC on January 01, 2026. Attached to Respondent's I&E are paystubs from (1) his previous employer, Lake Tahoe Aleworx LLC (which the court does not consider because the Respondent stopped working for this employer at the end of December 2025); and (2) Pyramid Investment LLC, covering the period of January 01, 2026, through February 15, 2026, and showing gross earnings of \$3,565.78. Therefore, the Respondent's current gross monthly income is approximately \$2,315.00 (rounded down from \$2,315.44).

The current child custody and visitation order is contained in the court's minute order issued September 24, 2025: Petitioner shall have primary custody of the minor children; and Respondent shall have visitation with the minor children every Friday from 5:00 p.m. to Saturday at 2:00 p.m. and on Sundays from 6:30 a.m. to 2:00 p.m. Therefore, for purposes of child support, the Respondent's child custody share is 17 percent, rounded up (28.5 hours / 168 hours in a week = 16.9 percent).

As shown in the attached XSpouse calculation printout, Respondent is ordered to pay Child Support to the Petitioner in the amount of \$590.00 beginning February 01, 2026, and the first of each month thereafter until further order of the court. The court orders the Respondent to pay \$188.80 Child Support for the month of January 2026 (32 percent of the monthly support amount).

TENTATIVE RULING #2: THE RFO IS GRANTED. THE RESPONDENT IS ORDERED TO PAY CHILD SUPPORT TO THE PETITIONER IN THE AMOUNT OF \$590.00 BEGINNING FEBRUARY 01, 2026, AND THE FIRST OF EACH MONTH THEREAFTER UNTIL FURTHER ORDER OF THE COURT. THE COURT ORDERS THE RESPONDENT TO PAY \$188.80 CHILD SUPPORT FOR THE MONTH OF JANUARY 2026 (32 PERCENT OF THE MONTHLY SUPPORT AMOUNT).

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR

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BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	2	2026		2016	2397
% time with NCP	17.00 %	0.00 %		Comb. net spendable	0%	19%
Filing status	SINGLE	HH/MLA	GUIDELINE	Percent change		
# exemptions	1 *	3 *	Nets(adjusted)	Father		
Wages+salary	2315	0	Father	2016		
Self-employed income	0	0	Mother	0	-1038	-867
Other taxable income	0	0	Total	2016	969	1140
TANF+CS received	0	0	Support		0	171
Other nontaxable income	0	0	Addons	0	% of combined spendable	48%
New spouse income	0	0	Guideln CS	590	% of saving over guideline	0%
401(k) employee contrib	0	0	Alameda SS	457	Total taxes	299
Adjustments to income	0	0	Total	1047	Dep. exemption value	0
SS paid prev marriage	0	0	CS range: 404-590		# withholding allowances	0
CS paid prev marriage	0	0			Net wage paycheck	1888
Health insurance	0	0		Mother		
Other medical expense	0	0			Payment cost/benefit	1047
Property tax expense	0	0			Net spendable income	1047
Ded interest expense	0	0	Proposed		Change from guideline	0
Charitable contributions	0	0	Tactic 9		% of combined spendable	52%
Misc tax deductions	0	0	CS	722	% of saving over guideline	0%
Qual bus income ded	0	0	SS	534	Total taxes	0
Required union dues	0	0	Total	1256	Dep. exemption value	0
Mandatory retirement	0	0			# withholding allowances	0
Hardship deduction	0 *	0 *	Saving	380	Net wage paycheck	0
Other GDL deductions	0	0	Releases	2		
Child care expenses	0	0	Released to Father			

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	17 - 83	0	0	0	Father	590	Father	590	Father
	17 - 83	0	0	0	Father	221	Father	221	Father

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3. CORA GRAHAM V. GARY GRAHAM

24FL0400

This matter is before the court for a Trial Setting Conference, as requested by the Respondent on February 24, 2026. The issues to be addressed at trial include: child custody and visitation, support, and division of property.

TENTATIVE RULING #3: APPEARANCES ARE REQUIRED AT 8:30 A.M., WEDNESDAY, MARCH 25, 2026, IN DEPARTMENT 12 TO SET TRIAL AND MANDATORY SETTLEMENT CONFERENCE DATES.